

Data Protection Agreement (DPA) — Vendor & AI Sub-Processor Schedule

Statutory Reference: Digital Personal Data Protection Act, 2023 Section 8(2) & DPDP Rules, 2025 Rule 7

1. Parties & Scope

This Agreement is entered into between **Personal Gemini Journal** ('Data Fiduciary') and **Cloud Infrastructure & AI Model Providers** ('Data Processors'), including Google Cloud Platform (`asia-south1`) and NVIDIA NIM API infrastructure.

2. Mandatory Sub-Processor Obligations

- **Statutory Purpose Limitation:** Data Processors shall process journal text and embeddings strictly for inference and semantic indexing, never for training foundation models.
- **Statutory Data Residency:** Processing must strictly occur within India (`asia-south1` Mumbai / `asia-south2` Delhi).
- **72-Hour Personal Data Breach Notification SLA (Sec 8(6) & Rule 7):** In the event of a security incident or breach affecting user data, the Processor must notify the Fiduciary within **24 hours** to enable statutory intimation to the Data Protection Board of India within the mandatory **72-hour SLA**.
- **Immediate Purge on Contract Termination:** Complete cryptographic destruction of vector embeddings and temporary cache stores upon contract termination or user erasure request.

3. Technical & Organizational Measures (TOMs)

- AES-256 encryption at rest across Firestore and Cloud Run tmpfs volumes.
- TLS 1.3 encryption in transit for all gRPC and HTTPS API traffic.
- IAM role separation following the Principle of Least Privilege (PoLP) with GCP Secret Manager.